

23STCP02062 23STCP02062

County: los-angeles

Division: Civil Law and Motion

Department: 734

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Case Number: 23STCP02062 Hearing Date: July 1, 2026 Dept: 734

The following tentative ruling is issued pursuant to Rule of Court 3.1308 at 2:50 PM on June 30, 2026.

Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1). The Court does not desire oral argument on the motion addressed herein.

As required by Rule 3.1308(a)(1), any party seeking oral argument must notify ALL OTHER PARTIES and the staff of Department 734 by 4:00 p.m. on June 30, 2026.

Notice to Department 734 should be sent by email to , with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

Per Rule of Court 3.1308, the Court may not entertain oral argument if notice of intention to appear is not given.

Plaintiffs allege that Defendant has breached a partnership agreement which included sharing the costs of a buildout of the suit for their joint practice.

Defendant filed a Cross-Complaint alleging being strong-armed by Cross Defendants into an unwilling partnership and deciding to build out the doctor's suits without the requisite building permits, as well as keeping Cross Complainant's property.

Following the return of a jury verdict, Plaintiffs made an oral motion to amend the Complaint to conform to proof at trial.

TENTATIVE RULING

Plaintiffs Richard Silver, O.D., et al.'s motion for leave to amend to conform the Complaint to prove at trial is DENIED.

Motions For Leave To Amend Complaint To Conform To Proof

Following the return of a jury verdict, Plaintiffs made an oral motion to amend the Complaint to conform to proof at trial on the ground that the answers from jury raises estoppel issue. Defendants filed a written opposition and Plaintiffs filed a written

reply.

Defendants' primary argument is that a cause of action for promissory estoppel is inconsistent with a cause of action for breach of contract based on the same facts.

Plaintiffs argue that at trial Defendants asserted for the first time the defense of the Statute of Frauds arguing the agreements alleged in Plaintiffs' Complaint were unenforceable due to the fact that they were not in writing. It was this late assertion of the statute that resulted in Plaintiff making an oral motion at trial to amend the complaint to add a cause of action for promissory estoppel. So long as Defendants might assert the statute of frauds in post-trial motions or on appeal, the amendment is still relevant and necessary in the interests of justice.

The Court agrees with Defendants' argument. As part of the jury's verdict, it expressly found that the parties agreed to give each other something of value and the parties agreed to the terms of the contract. (Jury Verdict Form Question Nos. 2 and 3. May 29, 2026 Minute Order, Pages 3 and 4 of 16.) As such, the jury found that an express contract existed between the parties, supported by consideration (agreement to give each other something of value[1]), and thus promissory estoppel is not an available theory of recovery.

The law is settled that the trial court may permit an amendment to a complaint to conform to the proof at any stage of the trial even after submission of the cause unless the amendment introduces a new and independent cause of action. (Citations omitted.)

(Sandvold v. Perrot (1946) 74 Cal. App. 2d 344, 348-349.)

Under the doctrine of promissory estoppel, a " 'promise which the promisor should reasonably expect to induce action or forbearance of a definite and substantial character on the part of the promisee and which does induce such action or forbearance is binding if injustice can be avoided only by enforcement of the promise.' " (Citation omitted.) "Promissory estoppel is 'a doctrine which employs equitable principles to satisfy the requirement that consideration must be given in exchange for the promise sought to be enforced.' " (Citation omitted.) "The purpose of this doctrine is to make a promise binding, under certain circumstances, without consideration in the usual sense of something bargained for and given in exchange." (Citation omitted.) Such consideration, however, "is essential to the existence of a contract." Citation omitted.) Hence, "promissory estoppel is distinct from contract in that the promisee's justifiable and detrimental reliance on the promise is regarded as a substitute for the consideration required as an element of an enforceable contract." (Citation omitted.)

A promissory estoppel claim also lacks another essential element of a contract claim: the parties' consent. Citation omitted.) Contract formation requires the parties' mutual assent, i.e., their "agree[ment] upon the same [*243] thing in the same sense." Citations omitted.) . . . In contrast, we have held the lack of mutual assent is "immaterial" to the resolution of a promissory estoppel claim, because "the doctrine of promissory estoppel is not premised upon the existence of an enforceable contract." (Citation omitted.) Thus, unlike contract law, which enforces promises because the parties have bargained for and agreed to be bound by them, promissory estoppel is an "alternative theory of recovery" that enforces promises because the promisee has justifiably and foreseeably relied on the promise and equity demands enforcement to avoid injustice. (Citation omitted.)

Based on these significant differences between contract and promissory estoppel claims, our Supreme Court repeatedly has recognized the claims not only as distinct or alternative theories of recovery but also as mutually exclusive. . . . Lastly, based on the different nature of contract and promissory estoppel claims, the Supreme Court rejected a promissory estoppel claim when the promisor had requested the promisee's performance at the time the promise was made: "where the promisee's reliance was bargained for, the law of consideration applies; and it is only where the reliance was unbargained for that there is room for application of the doctrine of promissory estoppel." (Citation omitted.)

The Courts of Appeal likewise have treated promissory estoppel and contract claims as fundamentally different. For example, our colleagues in Division Three rejected as "superfluous" a promissory estoppel claim when the plaintiff also sued for breach of contract and "adequate consideration existed." (Citation omitted.) Recently, the First District similarly held that "a plaintiff

cannot state a claim for promissory estoppel when the promise was given in return for proper consideration. The claim instead must be pleaded as one for breach of the bargained-for contract.” (Citation omitted.) , , ,

(Douglas E. Barnhart, Inc. v. CMC Fabricators, Inc. (2012) 211 Cal.App.4th 230, 242-44 [bold emphasis and underlining added].)

Indeed, the Supreme Court has held that it is error to permit amendment of a pleading to conform proof of promissory estoppel where there was evidence of a bargain for consideration:

Questions: First. Did the trial court commit prejudicial error in allowing respondent to amend his cross-complaint to conform to proof of promissory estoppel and instructing the jury that respondent might be able to recover on the basis of such doctrine

Yes. The doctrine of promissory estoppel is inapplicable where the promisee's performance was requested by the promisor at the time the promise was made. (Citation omitted.)

Under such circumstances, the only reliance which can make the promisor's failure to perform actionable is the promisee's doing what was requested. If that reliance was detrimental, it would constitute consideration. If it was not detrimental, it would not constitute consideration; and since detrimental reliance is an essential feature of promissory estoppel, that doctrine could not be invoked to make the promisor liable. (Citation omitted.)

In other words, where the promisee's reliance was bargained for, the law of consideration applies; and it is only where the reliance was unbargained for that there is room for application of the doctrine of promissory estoppel.

In the present case respondent's evidence shows that appellants requested his performance at the time the alleged promise was made, thus bargaining for his reliance. Accordingly, the doctrine of promissory estoppel is inapplicable.

Moreover, the judgment cannot be affirmed on the theory that the promise and requested reliance constituted an executed oral modification of the original contract (citation omitted), even if the facts necessary to support that theory are inherent in the jury verdict on promissory estoppel.

The case was tried as an action to recover under the original contract. The pleadings gave appellants no notice that recovery was sought on an oral modification of the original contract. Their trial tactics might well have been different had they known the importance of the oral promise during the trial. If the judgment were affirmed on the theory of an executed oral modification, appellants would be deprived of their right to defend on the issues raised by that theory. (Citations omitted.)

(Healy v. Brewster (1963) 59 Cal.2d 455, 463-65 [bold emphasis added].)

Because Plaintiffs litigated their claims based on breach of contract through trial and the jury returned a verdict on the breach of contract theory, Plaintiffs are deemed to have elected their remedy:

[T]he doctrine of election of remedies “is stated as follows: Where a person has two concurrent remedies to obtain relief on the same state of facts, and these remedies are inconsistent, he must choose or elect between them; and if he has clearly elected to proceed on one, he is bound by this election and cannot thereafter pursue the other. ‘Election of remedies has been defined to be the right to choose or the act of choosing between different actions or remedies where plaintiff has suffered one species of wrong from the act complained of. Broadly speaking, an election of remedies is the choice by a plaintiff to an action of one of two or more coexisting remedial rights, where several such rights arise out of the same facts, but the term has been generally limited to a choice by a party between inconsistent remedial rights, the assertion of one being necessarily repugnant to or a repudiation of the other.’ [Citation.]” (Citation omitted.)

(Denevi v. LGCC, LLC (2004) 121 Cal.App.4th 1211, 1218.)

For all of the foregoing reasons, Plaintiffs' motion for leave to amend to conform the Complaint to prove at trial is DENIED.

[1] Per Civil Code § 1605:

Any benefit conferred, or agreed to be conferred, upon the promisor, by any other person, to which the promisor is not lawfully entitled, or any prejudice suffered, or agreed to be suffered, by such person, other than such as he is at the time of consent lawfully bound to suffer, as an inducement to the promisor, is a good consideration for a promise.

(Civ. Code, § 1605.)